SER-001 Request for Sheriff to Serve Court Papers

Instructions: Each county in California has a sheriff (and sometimes a marshal's office) that can serve different types of court papers, including restraining orders. Note that the sheriff cannot guarantee that they will be successful in finding the person you need served, but they will try to serve based on the information you put on this form.

- Complete this form for each set of papers you need served. You must complete a separate form for each person you need served.
- Find out where the person you need served is located. Give your papers to the sheriff or marshal's office in that county.
- You may have to pay for service of some court papers. For more information, see page 5 of this form, or go to selfhelp.courts.ca.gov/sheriff-serves.
- Do not use this form if you are asking the sheriff to enforce a wage garnishment order on an employer. Instead, use forms WG-001, *Application for Earnings Withholding Order*, and WG-035, *Confidential Statement of Judgment Debtor's Social Security Number*.
- If you want the sheriff to enforce a writ or levy, complete this form and form SER-001A, *Special Instructions for Writs and Levies—Attachment*.

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To Court Clerk: Do not file this form.

Sheriff File Number *(for sheriff to complete, if needed):*

Fill in case number:

Court Case Number:
STK-CV-UF-2026-0001094

All information is required unless it is listed as optional or does not apply to your case.

1 To the Sheriff or Marshal of *(name of county):* Stanislaus

2 Your Information

a. Your name *(party requesting service):* Brendan Ngwa Nforbi

b. Your lawyer's information *(if you have one)*
Name:
Firm name:

c. Court case name: Ngwa Nforbi v. Diamond Truck Sales, Inc., et al.
(example: Garcia v. Smith)

d. Contact information for the sheriff or marshal to reach you
(Give an address where you can receive mail regularly, like a post office box, a Safe at Home address, or another safe address. If you have a lawyer, give the lawyer's information.)

Address to receive mail: 1455 Cat Tail Drive
City: Stockton State: CA Zip: 95204
Telephone number *(optional)*: (209) 801-4442 Email address *(optional)*: bnn.cdl@gmail.com

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This is not a court form. Do not file with the court.

3 Information About Person or Entity You Want Served

(Check a or b)

a. ☐ I ask the sheriff to serve a person *(complete section below)*

(1) Name of person: _____
Nicknames or aliases *(optional):* _____

(2) Telephone number *(optional):* _____

(3) Can you describe the person?
☐ No, I do *not* have any information about the person's description.
☐ Yes *(complete the section below with any information you have):*
Gender: ☐ Male ☐ Female ☐ Nonbinary
Height: _____ Weight: _____ Hair color: _____ Eye color: _____
Date of birth or age *(give estimate, if unknown):* _____
Race/Ethnicity: _____
Special marks or features *(tattoos, scars, etc.):* _____
Vehicle *(type, model, year, color, plate number):* _____
☐ *Check here if you are including a picture of the person.*

(4) Do you know of any safety or accessibility issues?
☐ No
☐ Yes *(complete the section below with any information you have):*
The person *(check all that apply):*
☐ Has a gun or other weapon.
☐ Has a history of violence or abuse.
☐ Has special training *(examples: military, first responder).*
☐ Is deaf or hard of hearing.
☐ Does not speak English *(list language):* _____
☐ Is on probation or parole.
☐ Has an aggressive animal.
☐ Has mental health issues.
☐ Add any other information about safety or accessibility that you know about:
_____
_____

b. ☑ I ask the sheriff to serve an entity *(examples: business or government agency)*

(1) Name and type of entity: Alpine Truck Sales, Inc., a California corporation (successor/alter ego of Diamond
Telephone number *(optional):* _____

(2) If there is a specific person who should be served, give name: Mustaqem Usmani, Manager (or person autho

(3) If there is an agent for service of process, give name: _____

(4) List any safety or accessibility issues *(examples: weapons, aggressive animals, language barrier):*
_____

4 Address Where Person or Entity Should Be Served

(The sheriff typically serves during normal business hours. Check with the sheriff's office for the exact times.)

Address: 1201 S Soderquist Road ☐ Home ☑ Business

City: Turlock State: CA Zip: 95380

Gate code or special instructions: Truck sales lot — ask for manager / authorized agent

Best time to serve at this address *(example: 8 a.m.–noon):* 8:00 a.m. – 5:00 p.m. (business hours)

☐ *Check here if the person is in jail or prison (give name of facility):*

Alternate address *(optional)*
(If the person cannot be found at the address listed above, some sheriffs may try a second address if it's in the same county. If you have a second address for the person you want served, complete the section below.)

Address: ☐ Home ☐ Business

City: State: Zip:

Gate code or special instructions:

Best time to serve at this address *(example: 8 a.m.–noon):*

5 Information About Your Request

a. What type of court papers are you giving the sheriff to serve *(examples: summons, restraining order, eviction, small claims, bank levy, or writ of attachment)?*
Notice of Amount of Punitive Damages Sought (CCP §425.115)

b. List all forms or court papers you want served on the person in 3 a. *(optional).*
(Note: You can list each form by its form number (example: FL-100, SC-100). If there is no form number, give the title of the document. The court may have ordered you to serve certain papers. Look at the court's order and list all forms required. If you do not know which papers you need to serve, ask a lawyer, or contact your local self-help center for free information.)
~~Notice of Amount of Punitive Damages Sought (Code Civ. Proc. § 425.115; Civ. Code § 3294) — $25,000.00 (dated August 3, 2026)~~

c. Is there a court hearing (court date)?
☐ I don't know
☐ No
☑ Yes *(if yes, give date of hearing):* 08/12/2026, 8:30 a.m., Dept. 11B

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This is not a court form. Do not file with the court.

5 d. Is there a deadline for service?

- ☐ I don't know
- ☐ No
- ☑ Yes *(if yes, give deadline):* 08/11/2026 (before prove-up)

e. Has the court allowed you to serve your court papers in another way besides personal service *(example: substituted service)?*

- ☐ I don't know
- ☑ No
- ☐ Yes *(if yes, include a copy of the order allowing another type of service)*

f. Is there any other information you want or need to give to the sheriff to serve your court papers?

- ☐ No
- ☑ Yes *(if yes, give information below):*

Deliver this SER-001 and the attached Notice of Amount of Punitive Damages Sought (CCP §425.115) to Stanislaus County Sheriff Civil Division for personal service at the address in item 4 (same location where Alpine was previously served July 1, 2026 — Levying Officer File No. 2026002577). Plaintiff has a court fee waiver in this action (FW-003) — no sheriff service fee (Gov. Code §26721). A separate SER-001 is submitted for co-defendant Diamond Truck Sales, Inc. (same address). Hearing / prove-up: August 12, 2026, 8:30 a.m., Dept. 11B, Hon. Robert T. Waters, San Joaquin Superior Court.

6 **Enforcement of Writ or Levy**

If you want the sheriff to enforce a writ or levy, you must complete form SER-001A, *Special Instructions for Writs and Levies—Attachment*, and turn it in with this form.

(Only complete this section if you want the sheriff to enforce a writ or levy.)

Do you want the sheriff to both serve your court papers and act as levying officer?

- ☐ Yes
- ☐ No. I only want the sheriff to act as levying officer. A registered process server has or will serve my papers.

Your Signature *(party asking for service, or their lawyer)*

Date: August 3, 2026

Brendan Ngwa Nforbi
Type or print your name



Sign your name (may be electronic)

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This is not a court form. Do not file with the court.

Your Next Steps

- Find out if you need to pay a fee for service by asking the court's self-help center, a lawyer, or the sheriff's office. Here are some situations where you **do not** need to pay for service:
  - If you have a fee waiver in your case (fee waiver granted by a judge on form FW-003 or FW-005).
  - If you are serving a domestic violence, elder abuse, or gun violence restraining order.
  - If you have a civil harassment, workplace violence, or school violence restraining order based on a credible threat of violence or stalking.

- Give this form and a copy of all the court papers you need served to the sheriff or marshal, including a copy of a fee waiver (if you have one). You can turn in your papers in person or send them electronically.

- You should get a form back from the sheriff.
  - If the sheriff was able to serve your court papers, you should receive a form (called a proof of service). **Make sure you get a copy from the sheriff and file it with the court**. Note that if there is a court stamp at the top right corner of the first page, it has already been filed and you do not need to file it with the court.
  - If the sheriff was unable to serve your court papers, you should receive a form (sometimes called declaration of due diligence) that tells you that service was unsuccessful and will give details about when the sheriff tried to serve the person. If the sheriff was unable to serve your papers, you can ask a lawyer or court's self-help center about your next steps.

- To find your local court self-help center, go to selfhelp.courts.ca.gov/. Self-help center staff will not act as your lawyer but may be able to give you information to help you decide what to do in your case. Services are free.

To Sheriff or Marshal

- This form is confidential and must not be made public.
- Any papers submitted with this form should be served and listed on the applicable proof of service form.
- Note that 5 b is optional and may help to identify documents that should have been submitted but were not received by your office.
- Under Government Code section 26666.2, once you've received a completed copy of this form and forms for service, you must attempt service unless:
  - Any order submitted does not have a judge's signature or other representation of a judge's signature; clerk's endorsement; or court stamp, seal, or other court endorsement; or
  - A court case number is not listed on the order, summons, or other notice.

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This is not a court form. Do not file with the court.

For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear

FW-003 Order on Court Fee Waiver (Superior Court)

Clerk stamps date here when form is filed.

FILED
SUPERIOR COURT SAN JOAQUIN
2026 FEB 13 A 11:54
STEPHANIE BOHRER, CLERK

(1) **Person who asked the court to waive court fees:**
Name: Brendan Ngwa Nforbi
Street or mailing address: 1455 Cat Tail Drive
City: Stockton State: CA Zip: 95204

(2) **Lawyer, if person in (1) has one** *(name, firm name, address, phone number, e-mail, and State Bar number):*

Fill in court name and street address:
Superior Court of California, County of
San Joaquin

Stockton Courthouse
180 E. Weber Avenue
Stockton, CA 95202

STK-CV-UF -2026-0001094

Case Name:
Ngwa Nforbi v. Diamond Truck Sales, Inc.

(3) A request to waive court fees was filed on *(date):* February 12, 2026
☐ The court made a previous fee waiver order in this case on *(date):*

Read this form carefully. All checked boxes are court orders.

Notice: The court may order you to answer questions about your finances and later order you to pay back the waived fees. If this happens and you do not pay, the court can make you pay the fees and also charge you collection fees. If there is a change in your financial circumstances during this case that increases your ability to pay fees and costs, you must notify the trial court within five days. (Use form FW-010.) If you win your case, the trial court may order the other side to pay the fees. If you settle your civil case for **$10,000** or more, the trial court will have a lien on the settlement in the amount of the waived fees. The trial court may not dismiss the case until the lien is paid.

(4) After reviewing your: ☒ *Request to Waive Court Fees* ☐ *Request to Waive Additional Court Fees* **the court makes the following orders:**

a. ☒ The court **grants** your request, as follows:

(1) ☒ **Fee Waiver.** The court grants your request and waives your court fees and costs listed below. *(Cal. Rules of Court, rules 3.55 and 8.818.)* You do not have to pay the court fees for the following:

- Filing papers in superior court
- Making copies and certifying copies
- Sheriff's fee to give notice
- Court fee for phone hearing
- Giving notice and certificates
- Sending papers to another court department
- Reporter's fee for attendance at hearing or trial, if the court is not electronically recording the proceeding and you request that the court provide an official reporter
- Assessment for court investigations under Probate Code section 1513, 1826, or 1851
- Preparing, certifying, copying, and sending the clerk's transcript on appeal
- Holding in trust the deposit for a reporter's transcript on appeal under rule 8.130 or 8.834
- Making a transcript or copy of an official electronic recording under rule 8.835

(2) ☐ **Additional Fee Waiver.** The court grants your request and waives your additional superior court fees and costs that are checked below. *(Cal. Rules of Court, rule 3.56.)* You do not have to pay for the checked items.

☐ Jury fees and expenses
☐ Fees for court-appointed experts
☐ Other *(specify):*
☐ Fees for a peace officer to testify in court
☐ Court-appointed interpreter fees for a witness

b. ☐ The court **denies** your fee waiver request because:

Warning! If you miss the deadline below, the court cannot process your request for hearing or the court papers you filed with your original request. If the papers were a notice of appeal, the appeal may be dismissed.

(1) Your request is incomplete. You have **10 days** after the clerk gives notice of this Order (see date of service ☐ on next page) to:

- Pay your fees and costs, or
- File a new revised request that includes the incomplete items listed:
  ☐ Below ☐ On Attachment 4b(1)

(2) ☐ The information you provided on the request shows that you are not eligible for the fee waiver you requested for the reasons stated: ☐ Below ☐ On Attachment 4b(2)

The court has enclosed a blank *Request for Hearing About Court Fee Waiver Order (Superior Court)* (form FW-006).You have **10 days** after the clerk gives notice of this order (see date of service below) to:

- Pay your fees and costs in full or the amount listed in c below, or
- Ask for a hearing in order to show the court more information. *(Use form FW-006 to request hearing.)*

c. (1) ☐ The court needs more information to decide whether to grant your request. You must go to court on the date on page 3. The hearing will be about the questions regarding your eligibility that are stated:
☐ Below ☐ On Attachment 4c(1)

(2) ☐ Bring the items of proof to support your request, if reasonably available, that are listed:
☐ Below ☐ On Attachment 4c(2)

This is a Court Order.

Your name: Brendan Ngwa Nforbi

Case Number:

Name and address of court if different from above:

Hearing Date

Date: _____ Time: _____

Dept.: _____ Room: _____

Warning! If item c(1) is checked, and you do not go to court on your hearing date, the judge will deny your request to waive court fees, and you will have 10 days to pay your fees. If you miss that deadline, the court cannot process the court papers you filed with your request. If the papers were a notice of appeal, the appeal may be dismissed.

Date: 02/13/2026

Signature of (check one): ☐ *Judicial Officer* ☒ *Clerk, Deputy*

Request for Accommodations

STEPHANIE BOHRER

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office for *Request for Accommodations by Persons With Disabilities and Response* (form MC-410). (Civ. Code, § 54.8.)

Clerk's Certificate of Service

I certify that I am not involved in this case and *(check one)*:

☒ I handed a copy of this Order to the party and attorney, if any, listed in (1) and (2), at the court, on the date below.

☐ This order was mailed first class, postage paid, to the party and attorney, if any, at the addresses listed in (1) and (2), from *(city)*: _____, California, on the date below.

☐ A certificate of mailing is attached.

Date: 02/13/2026

Clerk, by _____, Deputy

Name: ~~DANIELLE JEANDEBIEN~~

STEPHANIE BOHRER

This is a Court Order.

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form | Save this form | Clear this form

BRENDAN NGWA NFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI, Plaintiff, v. **DIAMOND TRUCK SALES, INC., a California corporation; ALPINE TRUCK SALES, INC., a California corporation; and DOES 1 through 20, inclusive,** Defendants.	Case No. STK-CV-UF-2026-0001094 **NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT** (Code Civ. Proc. § 425.115; Civ. Code § 3294) TO BE SERVED ON: **Alpine Truck Sales, Inc.** Assigned to: Hon. Robert T. Waters, Dept. 11B Prove-Up / CMC: August 12, 2026 Action Filed: February 13, 2026

NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT

(Code of Civil Procedure section 425.115)

TO DEFENDANT ALPINE TRUCK SALES, INC., a California corporation (sued individually and as the successor in interest, mere continuation, and/or alter ego of Diamond Truck Sales, Inc.):

NOTICE TO DEFENDANT:

Brendan Ngwa Nforbi reserves the right to seek $25,000.00 in punitive damages when

Brendan Ngwa Nforbi seeks a judgment in the suit filed against you.

This Notice is served pursuant to Code of Civil Procedure section 425.115 to preserve Plaintiff's right to seek punitive damages under Civil Code section 3294 in connection with any default judgment, court judgment after default, or other judgment in this action. The amount stated above is the amount of punitive damages Plaintiff presently seeks against you; if you appear in the action, Plaintiff shall not be limited to that amount. (Code Civ. Proc., § 425.115, subds. (b)-(c).)

This Notice is directed to you alone. A separate Notice under section 425.115 is being served on each named defendant against whom Plaintiff seeks punitive damages.

PLEASE TAKE FURTHER NOTICE that a Case Management Conference / default prove-up hearing in this action is set for August 12, 2026, at 8:30 a.m., in Department 11B of the Superior Court of California, County of San Joaquin, before the Honorable Robert T. Waters.

Dated: August 3, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Pro Per